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Case Number: 25STCV20056 Hearing Date: June 23, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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DARIN GOLTARA,

Plaintiff,

vs.

CITY OF MONTEBELLO,

Defendant.

Case No.:

25STCV20056

Hearing Date:

June 23, 2026

[TENTATIVE] ORDER RE: DEFENDANT CITY OF MONTEBELLO'S DEMURRER TO THE FIFTH CAUSE OF ACTION OF THE SECOND AMENDED COMPLAINT.

I. BACKGROUND

On July 8, 2025, Plaintiff Darin Goltara (Plaintiff) filed a complaint against Defendant City of Montebello (Defendant) asserting seven causes of action for (1) discrimination in violation of Government Code §§ 12940 et seq., (2) harassment in violation of Government Code §§ 12940 et seq., (3) retaliation in violation of Government Code §§ 12940 et seq., (4) failure to prevent discrimination, harassment and retaliation in violation of Government Code § 12940(k), (5) declaratory judgment, (6) retaliation pursuant to Labor Code §§ 1102.5, 1102.6, and (7) wrongful termination in violation of public policy.

The complaint alleges the facts as follows:

Plaintiff, who is Caucasian, was employed as a firefighter with the Montebello Fire Department (Fire Department) since 2001. (Compl., ¶ 9.) Chief Fernando Pelaez (Pelaez) has led the Fire Department since 2017, and there has been a notable shift towards favoring employees of Hispanic, primarily Mexican, descent under his administration. (Compl., ¶ 12.) Pelaez has weaponized racial identity to create division in the Fire Department and allowed individuals of Hispanic heritage to circumvent chain of command by refusing to report to Caucasian firefighters. (Compl., ¶ 64.) Pelaez further misrepresented and deprived Plaintiff of some of his duties, filed a restraining order intended to harass, cause undue stress, and limit Plaintiff's ability to work, filed retaliatory claims against Plaintiff with Human Resources, and intimidated and commanded Plaintiff not to reach out to Human Resources with concerns, ultimately resulting in the wrongful termination of Plaintiff from his employment under false pretenses. (Compl., ¶ 13, 38, 46-47, 51, 52-53, 70.)

On October 28, 2025, Plaintiff and Defendant filed a stipulation to allow Plaintiff to file a first amended complaint.

On November 6, 2025, the stipulation was signed into order and the first amended complaint was filed on November 7.

On December 9, 2025, the Court signed into order a stipulation between the parties to extend the time for Defendant to file a responsive pleading to December 23, 2025.

On January 13, 2026, the Court signed into order and granted a stipulation between the parties permitting Plaintiff to file a second amended complaint (Second Amended Complaint).

On January 13, 2026, Plaintiff filed his Second Amended Complaint.

On March 5, 2026, Defendant filed the present demurrer to the fifth cause of action of the Second Amended Complaint. Plaintiff opposed. Defendant replied.

II. MEET AND CONFER REQUIREMENT

Before filing a demurrer, the demurring party is required to meet and confer in person, by telephone, or by video conference with the party who filed the pleading demurred to for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41, subd. (a).)

Brett M. Rubin (Rubin), Defense counsel, states he participated in a telephone conference with Plaintiff's counsel to meet and confer regarding the legal sufficiency of the allegations of the Second Amended Complaint, including the allegations related to Labor Code section 1102.5. (Ruben Decl., ¶ 3.) Rubin states during the call, counsel discussed the bases upon which Defendant believed the pleading failed to state facts sufficient to constitute a cause of action, but were unable to reach an agreement regarding the sufficiency of the pleadings or need for amendment. (Id., ¶ 4-5.)

Because counsel met and conferred by telephone regarding the specific objections to be raised in the demurrer, the Court finds the meet and confer requirement satisfied.

III. PRELIMINARY PROCEDURAL ISSUES

All opposition papers must be filed and served at least nine court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Due to the court holiday on June 19, 2026, Plaintiff's deadline for filing his opposition to Defendant's demurrer was on June 9th. Plaintiff filed his opposition on June 10, 2026. Therefore, Plaintiff's opposition is untimely. The deadline for filing a reply was June 16, 2026. No reply or opposition to the untimely filing has been filed to date.

The Court exercises its discretion and will consider the opposition on the merits.

IV. LEGAL STANDARD

A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc. § 430.10, subd. (e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) Courts must "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

Failure to State Facts Sufficient to Constitute a Cause of Action

Defendant avers Plaintiff's Second Amended Complaint fails to state facts sufficient to constitute a cause of action as to the fifth cause of action for retaliation in violation of Labor Code sections 1102.5 and 1102.6. (Demurrer, p. 10:14.)

Labor Code section 1102.5, subdivision (b) states, in relevant part:

"An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information...to a person with authority over the employee or to another employee who has the authority to investigate, discover, or correct the violation or noncompliance,... if the employee has reasonable cause to believe that the information

discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties."

(Lab. Code, § 1102.5, subd. (b).)

A claim for violation of Labor Code section 1102.5 first requires that "the plaintiff establish a prima facie case of retaliation." (Manavian v. Department of Justice (2018) 28 Cal.App.5th 1127, 1141.) To establish a prima facie case of retaliation, a plaintiff must show he (1) engaged in a protected activity, (2) was subjected to adverse employment action by his employer, and (3) that there was a causal link between the disclosure and the adverse action. (Ibid.) "An employee engages in activity protected by the statute when the employee discloses 'reasonably based suspicions' of illegal activity." (Ross v. County of Riverside (2019) 36 Cal.App.5th 580, 592 (citation omitted).) Labor Code section 1102.5 "imposes a requirement of objective reasonableness and excludes from whistleblower protection disclosures that involve only disagreements over discretionary decisions, policy choices, interpersonal dynamics, or other nonactionable issues." (People ex rel. Garcia-Brower v. Kolla's, Inc. (2023) 14 Cal.5th 719, 734.) Labor Code section 1102.5 "requires only that an employee disclose information and that the employee reasonably believe the information discloses unlawful activity," and there is no further requirement that the plaintiff make an express statement that the information amounts to a violation or noncompliance with a specific state or federal law at the time of disclosure. (Id. at 592-93.)

Here, Defendant contends Plaintiff has failed to establish that he was engaged in protected activity because he does not plead facts describing the unlawful conduct, and does not identify specific actions taken, the individuals involved, or factual circumstances necessary for a determination of whether Plaintiff's belief that the actions were unlawful was objectively reasonable. (Demurrer, p. 7:1-8.)

The Second Amended Complaint alleges the following relevant facts: (1) Pelaez and his administration provided more favorable treatment to Latino or Hispanic employees over more qualified employees of different ethnicities, and disproportionately harassed, threatened, and retaliated against employees who are not Latino or Hispanic (SAC, ¶ 11); (2) the Fire Department terminated Plaintiff on the basis of racial discrimination and retaliation (SAC, ¶ 12); (3) Pelaez repeatedly ignored and excluded Plaintiff and others from participation in workplace events in which they would ordinarily be involved (SAC ¶ 21-24); (4) Jarrett Barker, son of Craig Barker, tested for a position with the Fire Department and scored a 99.54 percent, but Pelaez hired eight firefighters, primarily Latino or Hispanic, with lower scores and did not offer Jarrett Barker a position (SAC, ¶ 25); (5) on June 22, 2023, Plaintiff was interviewed by an investigator as part of Craig Barker's complaint against Pelaez which named Plaintiff as a witness, and that Plaintiff provided his perceptions about the unfair, unlawful, and discriminatory actions taken by Pelaez and his administration and perceived retaliation against personnel who did not support his agenda (SAC, ¶ 31); (6) on July 13, 2023, Plaintiff initiated a complaint against Pelaez through the City's Human Resources Department complaining about discrimination, deliberate exclusion, harassment, retaliation, and threats, including a threat against exercising his right to report wrongful conduct (SAC, ¶ 34); (7) that Pelaez has weaponized ethnic identity and created an atmosphere where individuals feel comfortable circumventing the chain of command to report to Pelaez directly against a person of a different race or ethnicity, specifically Caucasian, and uses these tactics to fire employees (SAC, ¶ 45-46); (8) Plaintiff's treatment and termination were substantially motivated by his race (SAC, ¶ 50); (9) Plaintiff disclosed information to supervisors and to the Human Resources Department that he reasonably believed constituted a violation of a state or federal statute, or violation of a local, state, or federal rule or regulation (SAC, ¶ 101); and (10) Plaintiff was interviewed and voiced his complaints about discrimination, harassment, and retaliation on June 22, 2023, September 26, 2023, November 2, 2023, and April 25, 2024 (SAC, ¶ 101).

Taking Plaintiff's factual allegations as true, Plaintiff has pleaded sufficient facts to state a cause of action. As discussed above, the Second Amended Complaint must be read reasonably, liberally, and in context. (Blank, supra, 39 Cal.3d at 318.) Plaintiff has established that Pelaez was his supervisor and that his concerns were raised to the Human Resources Department for the City, which subsequently opened investigations and conducted interviews as to the complaints. Plaintiff further alleges that he disclosed information on specified dates in connection with investigations, arising from complaints filed by Plaintiff, Pelaez, and Baker. These facts as alleged satisfy the requirements delineated in Labor Code section 1102.5 that the disclosures be made to a person with authority over the employee or to another employee who has the authority to investigate the violation. Furthermore, Plaintiff has stated he believed the acts complained of constituted unlawful violations of state or federal law, rule, or regulation, that he was subject to adverse employment action from his employer by way of being placed on leave pending a 20 month investigation into a retaliatory and racially motivated complaint and ultimately being terminated, and lists several non-exclusive retaliatory actions taken by his employer "as a result of his disclosures to supervisors and the HR Department." (SAC, ¶ 102.)

Defendant argues Plaintiff fails to state a cause of action because paragraph 101 of the Second Amended Complaint only states conclusory allegations which cannot be taken at face value when analyzing a demurrer. However, Defendant's argument is unpersuasive because Plaintiff re-alleges and incorporates by reference all preceding paragraphs containing detailed factual background related to the alleged discrimination and retaliation. Plaintiff also states he provided his perceptions and concerns about the actions taken by Pelaez, the perceived retaliation, and voiced complaints about Pelaez's racially discriminatory agenda and practices. (SAC, ¶ 101.)

Defendant further argues that Plaintiff's disclosure of his concerns and perceptions of unlawful activity do not satisfy the requirement that Plaintiff disclose "information." Defendant reads Labor Code section 1102.5 to require an employee to communicate factual information that suggests wrongdoing, not general perceptions about workplace conduct. (Demurrer, p. 9:6-10.) While the Labor Code does not explicitly define "information," the Court declines to take the position that disclosure to supervisors or employees with investigative authority does not fall under the purview of Labor Code section 1102.5 if the information communicated is based on personal perception. Reports of alleged conduct and reasonably based suspicions of ongoing unlawful conduct fall within the meaning of "disclosure of information." (See *Green v. Ralee Engineering Co.* (1998) 19 Cal.4th 66, 87.) The Supreme Court has held that "[t]he term 'disclosure' may reasonably encompass an employee's report or complaint that calls attention to a legal violation or potential violation in the workplace," and "a protected disclosure under section 1102.5(b) encompasses reports or complaints of a violation made to an employer or agency even if the recipient already knows of the violation." (Kolla's, supra, 14 Cal.5th at 726, 734.) Here, Plaintiff's complaints and perceptions of unlawful, discriminatory, and retaliatory conduct by Pelaez and his administration, reported to Human Resources, satisfy this requirement.

Further, Labor Code section 1102.5, subdivision (b), while it does not protect Plaintiff as he reported his suspicions to his employer, shows "the Legislature's interest in encouraging employees to report workplace activity that may violate important public policies that the Legislature has stated," and that "our Legislature believes that fundamental public policies embodied in regulations are sufficiently important to justify encouraging employees to challenge employers who ignore those policies." (Green, supra, 19 Cal.4th at 77.) To hold that employee disclosure does not constitute sufficient information when based on personal perception, concerns, or conclusory allegations of unlawful conduct warranting investigation would circumvent the legislative intent in enacting the statutory scheme in question.

Finally, the Second Amended Complaint alleges causes of action for violation of the Fair Employment and Housing Act, arising from the same set of facts and course of conduct Plaintiff raised to Human Resources and Pelaez. This sufficiently identifies specific law in the complaint Plaintiff alleges was violated by the reported conduct.

Reading the document as a whole, and in context of the factual background preceding the complaints, investigations, and Plaintiff's disclosures throughout the investigative process, the Court finds that Plaintiff has alleged sufficient facts to support his cause of action.

Accordingly, Defendant's demurrer cannot be sustained on this ground.

Civil Penalties Against A Public Entity

Defendant argues the fifth cause of action is improper as a matter of law because it requests civil penalties against a public entity without identifying any statutory authorization. (Demurrer, p. 8:11-14.)

Under the Government Claims Act, a public entity is not liable for an injury, whether arising out of an act or omission of the public entity or a public employee, unless otherwise provided by statute. (Gov. Code § 815.) Government Code section 818 states a public entity is not liable for punitive damages or other damages imposed primarily for the sake of example and by way of punishing the defendant.

The Second Amended Complaint requests “civil penalties pursuant to Labor Code § 1102.5 in the amount of no less than \$10,000.” (SAC, p. 21:8-9, Prayer For Relief.) Labor Code section 1102.5 protects any individual employed by the state or subdivision thereof, any county, city, city and county, and municipal or public corporation, and explicitly permits an award of reasonable attorney’s fees in subdivision (j). (Lab. Code, § 1106.) Civil penalties as delineated in Labor Code section 1102.5 may be imposed in addition to other remedies available, such as compensatory and special damages, and are not the sole form of relief available to Plaintiff. (Lab. Code, §1102.5, subd. (f)(1).)

Here, Plaintiff is an employee of the Fire Department and is therefore a city employee protected under Labor Code section 1102.5. Even if Plaintiff is not statutorily entitled to civil penalties against the City in the present action, the Second Amended Complaint also requests compensatory damages including lost wages, earnings, commissions, retirement and other employee benefits, other special damages, general damages for mental pain and anguish, emotional distress, and loss of earning capacity, reinstatement, and costs of suit, attorneys’ fees, and expert witness fees, which are available under Labor Code section 1102.5. (SAC, p. 21:4-14, Prayer For Relief.)

Defendant does not argue Plaintiff is categorically barred from all forms of requested relief, but only argues Defendant is immune from the imposition of one form of relief requested. Because Plaintiff has requested various forms of relief arising from his fifth cause of action, striking the whole cause of action based on one form of relief requested is improper. (See *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047 [demurrer improperly sustained where allegations of complaint were insufficient to establish plaintiff’s entitlement to one category of damages because a demurrer cannot rightfully be sustained to a particular type of damage or remedy].)

Accordingly, Defendant’s demurrer to the fifth cause of action is OVERRULED.

Defendant’s Reliance on *Dhiel v. Rite Aid*

Defendant cites to “*Dhiel v. Rite Aid Corp.* (2017) 18 Cal.App.5th 736, 745” to support the contention that the complaint must allege facts describing the underlying conduct that purportedly violated the law so the court can evaluate the objective reasonableness of a plaintiff’s belief. (Demurrer, p. 6:26-27.) Plaintiff states that it was unable to locate any such decision and asks that “the City be asked to confirm that the authorities in its demurrer were verified before filing.” (Opp., p. 5:12-14). In its reply brief, Defendant admits two errors, including the “no such published opinion exists.” (Reply, p. 2)

The Court confirms that it found no published or verifiable case in the state of California by the name “*Dhiel v. Rite Aid Corp.*,” and no published or verifiable case that stands for the proposition for which it was cited at the cited reporter volume. The case at the reporter volume cited by Defendant is *People v. Sanchez* (2017) 18 Cal.App.5th 727, which involves dismissal of a criminal contempt charge for violating a permanent anti-gang injunction, but has no mention of the whistleblower statute.

The Court is concerned with Defendant’s citation to a non-existent case. Accordingly, the Court sets an Order to Show Cause hearing why the Defendant’s counsel should not be sanctioned \$750 for violation of Code of Civil Procedure section 128.7(b)(2). (*Noland v. Land of the Free, L.P.* (2025) 114 Cal. App. 5th 426, 443–49.)

IV. CONCLUSION

For the foregoing reasons, Defendant’s demurrer is OVERRULED.

The Courts orders Defendant’s counsel to show cause as to why they should not be sanctioned \$750 pursuant to Code of Civil Procedure section 128.7(b)(2) for citing a non-existent case and sets an Order to Show Cause hearing on

_____.

Moving Party is ordered to give notice.

DATED: June 23, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.